

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Volha Shauchenka	Team: Squad #15	CCRB Case #: 201708643	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 10/11/2017 8:55 AM	Location of Incident: § 87(2)(b)	Precinct: 48	18 Mo. SOL 4/11/2019	EO SOL 4/11/2019	
Date/Time CV Reported Thu, 10/19/2017 10:32 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/19/2017 10:32 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Gatling	11231	915773	048 PCT
2. POM Brian Hernandez	12767	959690	048 PCT
3. POM Nicolas Mahuad	02214	960850	048 PCT
4. An officer			048 PCT
5. POM Gregory Smith	06377	951274	048 PCT
6. POM Jamal Cumberbatch	29286	950258	048 PCT
7. POM Heriberto Sifonte	16472	942541	048 PCT
8. POM Jose Rivera	02544	942439	048 PCT
9. Officers			048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ariel Torres	03337	961381	048 PCT
2. POM Iqueurys Brito	12301	953707	048 PCT
3. POM Michael Fraterrigo	02226	938501	045 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Nicolas Mahuad	Abuse: Police Officer Nicolas Mahuad threatened § 87(2)(b) with the use of force.	§ 87(2)(b)
B.POM Nicolas Mahuad	Abuse: Police Officer Nicolas Mahuad entered § 87(2)(b) in the Bronx.	§ 87(2)(b)
C.POM Gregory Smith	Abuse: Police Officer Gregory Smith entered § 87(2)(b) in the Bronx.	§ 87(2)(b)
D.POM Jamal Cumberbatch	Abuse: Police Officer Jamal Cumberbatch entered § 87(2)(b) in the Bronx.	§ 87(2)(b)
E.POM Christophe Gatling	Abuse: Police Officer Christopher Gatling entered § 87(2)(b) in the Bronx.	§ 87(2)(b)
F.POM Brian Hernandez	Abuse: Police Officer Brian Hernandez entered § 87(2)(b) in the Bronx.	§ 87(2)(b)
G. An officer	Abuse: An officer entered § 87(2)(b) in the Bronx.	§ 87(2)(b)
H.POM Nicolas Mahuad	Force: Police Officer Nicolas Mahuad used physical force against § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
I.POM Christophe Gatling	Force: Police Officer Christopher Gatling used physical force against § 87(2)(b)	
J.POM Brian Hernandez	Force: Police Officer Brian Hernandez used physical force against § 87(2)(b)	
K. An officer	Force: An officer used physical force against § 87(2)(b)	
L.POM Christophe Gatling	Force: Police Officer Christopher Gatling used physical force against § 87(2)(b)	
M.POM Brian Hernandez	Force: Police Officer Brian Hernandez used physical force against § 87(2)(b)	
N. An officer	Force: An officer used physical force against § 87(2)(b)	
O.POM Nicolas Mahuad	Abuse: Police Officer Nicolas Mahuad threatened § 87(2)(b) with the use of force.	
P.POM Nicolas Mahuad	Discourtesy: Police Officer Nicolas Mahuad spoke discourteously to § 87(2)(b)	
Q.POM Nicolas Mahuad	Abuse: Police Officer Nicolas Mahuad questioned § 87(2)(b)	
R.POM Nicolas Mahuad	Discourtesy: Police Officer Nicolas Mahuad spoke discourteously to § 87(2)(b)	
S.POM Nicolas Mahuad	Abuse: Police Officer Nicolas Mahuad threatened § 87(2)(b) with the use of force.	
T.POM Nicolas Mahuad	Abuse: Police Officer Nicolas Mahuad frisked § 87(2)(b)	
U.POM Heriberto Sifonte	Abuse: Police Officer Heriberto Sifonte frisked § 87(2)(b)	
V.POM Brian Hernandez	Abuse: Police Officer Brian Hernandez entered § 87(2)(b) in the Bronx.	
W.POM Brian Hernandez	Abuse: Police Officer Brian Hernandez searched § 87(2)(b) in the Bronx.	
X.POM Christophe Gatling	Abuse: Police Officer Christopher Gatling entered § 87(2)(b) in the Bronx.	
Y.POM Christophe Gatling	Abuse: Police Officer Christopher Gatling searched § 87(2)(b) in the Bronx.	
Z.POM Jamal Cumberbatch	Abuse: Police Officer Jamal Cumberbatch entered § 87(2)(b) in the Bronx.	
2A.POM Gregory Smith	Abuse: Police Officer Gregory Smith entered § 87(2)(b) in the Bronx.	
2B. Officers	Abuse: Officers entered § 87(2)(b) in the Bronx.	
2C.POM Jamal Cumberbatch	Abuse: Police Officer Jamal Cumberbatch searched § 87(2)(b) in the Bronx.	
2D.POM Nicolas Mahuad	Abuse: Police Officer Nicolas Mahuad entered § 87(2)(b) in the Bronx.	
2E.POM Gregory Smith	Abuse: Police Officer Gregory Smith entered § 87(2)(b) in the Bronx.	
2F.POM Jose Rivera	Abuse: Police Officer Jose Rivera entered § 87(2)(b) in the Bronx.	
2G.POM Gregory Smith	Discourtesy: Police Officer Gregory Smith spoke discourteously to § 87(2)(b)	

Case Summary

On October 19, 2017, § 87(2)(b) filed this complaint with the CCRB on behalf of herself and her brother § 87(2)(b) who was uncooperative with the investigation [BR 15].

On October 11, 2017, at approximately 8:30 a.m., PO Nicolas Mahuad of the 48th Precinct pointed his Taser at § 87(2)(b) in front of her § 87(2)(b) at § 87(2)(b) in the Bronx (**Allegation A: Abuse of Authority**, § 87(2)(g) PO Mahuad, PO Gregory Smith, PO Jamal Cumberbatch, PO Christopher Gatling, PO Brian Hernandez, and an officer of the same command entered § 87(2)(b)'s apartment, and PO Mahuad, PO Gatling, PO Hernandez, and an officer pulled § 87(2)(b) out into the hallway (**Allegations B, C, D, E, F, and G: Abuse of Authority**, § 87(2)(g)

§ 87(2)(b); **Allegations H, I, J and K: Force**, § 87(2)(g) § 87(2)(b)). PO Gatling, PO Hernandez, and an officer allegedly pushed § 87(2)(b) against the wall (**Allegations L, M, and N: Force**: § 87(2)(g) § 87(2)(b)). PO Mahuad pointed his Taser at § 87(2)(b) again and told her, "Put your fucking hands behind your back," (**Allegation O: Abuse of Authority**, § 87(2)(g) **Allegation P: Discourtesy**, § 87(2)(g) PO Mahuad also asked if § 87(2)(b) had a knife and told him to come out of the "fucking apartment," (**Allegation Q: Abuse of Authority**, § 87(2)(g) **Allegation R: Discourtesy**, § 87(2)(g) In addition, PO Mahuad pointed his Taser at § 87(2)(b) (**Allegation S: Abuse of Authority**, § 87(2)(g) PO Mahuad and PO Sifonte frisked § 87(2)(b) and PO Mahuad told him to keep his hands up on the "fucking wall," (**Allegations T and U: Abuse of Authority**, § 87(2)(g) § 87(2)(g) **within Allegation R: Discourtesy**, § 87(2)(g) PO Hernandez and PO Gatling allegedly entered § 87(2)(b)'s apartment and searched it (**Allegations V, W, X, and Y: Abuse of Authority**, § 87(2)(g) PO Cumberbatch, PO Smith and officers of the same command also entered § 87(2)(b)'s apartment (**Allegations Z, 2A and 2B: Abuse of Authority**, § 87(2)(g) § 87(2)(b) § 87(2)(b)). PO Cumberbatch then searched § 87(2)(b)'s apartment for a weapon (**Allegation 2C, Abuse of Authority**, § 87(2)(g) Towards the end of the incident, PO Mahuad, PO Smith and PO Rivera entered § 87(2)(b)'s apartment again to take her identification and \$5 from § 87(2)(b) (**Allegations 2D, 2E, and 2F: Abuse of Authority**, § 87(2)(g) While inside the apartment, PO Smith yelled to § 87(2)(b) "You ain't getting no phone call. Take her ass downstairs," (**Allegation 2G: Discourtesy**, § 87(2)(g)

There are three video clips recorded by PO Mahuad's body worn camera (BWC) [NYPD 03, 04, 05, originals].

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Nicolas Mahuad threatened § 87(2)(b) with the use of force.

Allegation (B) Police Officer Nicolas Mahuad entered § 87(2)(b) in the Bronx.

Allegation (C) Police Officer Gregory Smith entered § 87(2)(b) in the Bronx.

Allegation (D) Police Officer Jamal Cumberbatch entered § 87(2)(b) in the Bronx.

Allegation (E) Police Officer Christopher Gatling entered § 87(2)(b) in the Bronx.

Allegation (F) Police Officer Brian Hernandez entered § 87(2)(b) in the Bronx.

Allegation (G) Abuse of Authority: An officer entered § 87(2)(b) in the Bronx.

Allegation (H) Force: Police Officer Nicolas Mahuad used physical force against § 87(2)(b)

Allegation (I) Force: Police Officer Christopher Gatling used physical force against § 87(2)(b)

Allegation (J) Force: Police Officer Brian Hernandez used physical force against § 87(2)(b)

Allegation (K) Force: An officer used physical force against § 87(2)(b)

Allegation (L) Force: Force: Police Officer Christopher Gatling used physical force against § 87(2)(b)

Allegation (M) Force: Police Officer Brian Hernandez used physical force against § 87(2)(b)

Allegation (N) Force: An officer used physical force against § 87(2)(b)

Allegation (O) Abuse of Authority: Police Officer Nicolas Mahuad threatened § 87(2)(b) with the use of force.

Allegation (P) Discourtesy: Police Officer Nicolas Mahuad spoke discourteously to § 87(2)(b)

The following facts are not disputed: PO Mahuad and the rest of the officers responded to § 87(2)(b) at § 87(2)(b) in the Bronx in regards to a 911 call placed by § 87(2)(b) who alleged that her neighbor § 87(2)(b) had assaulted her with a bat inside the building. Upon arrival, PO Mahuad, PO Gatling, PO Cumberbatch, and PO Smith spoke to § 87(2)(b) in the stairwell who provided § 87(2)(b)'s apartment number to them. One of the officers knocked on § 87(2)(b)'s apartment door and she opened it. PO Mahuad pointed his Taser at § 87(2)(b) § 87(2)(g). § 87(2)(b) attempted to close the door, and PO Smith and PO Cumberbatch pushed the door in. PO Mahuad and other officers entered § 87(2)(b)'s apartment and pulled her out into the hallway. Although § 87(2)(b) did not allege that, the BWC video shows an officer tell § 87(2)(b) “Put your hands up on the fucking wall,” after she was taken into the hallway.



2018-05-24_10-59-13.mp4

[BR 27]

Snagit of BWC video 1

BWC video footage from PO Mahuad has no audio for the first 30 seconds [BR 27]. It depicts an unidentified cylindrical object wrapped in black plastic bag on the floor at one second. At five seconds, PO Mahuad moves towards the apartment and a Taser is briefly seen in his right hand. It is visible that the § 87(2)(b)'s door is closed at 6 seconds and officers stand in front of it. At 16 seconds, a black tall officer is seen kicking the door two times with his foot and is

successful in pushing it in at 18 seconds. The video is shaky, but at least one officer together with PO Mahuad are seen entering the apartment at that point. The camera is obstructed for a second, and at 22 seconds, § 87(2)(b) is seen moving fast into the hallway outside the apartment. PO Mahuad is pointing his Taser towards § 87(2)(b) at 25 seconds. The video is shaky again, and at 29 seconds, § 87(2)(b) is seen standing partially facing the wall opposite her apartment in the corner. Two officers appear to be handcuffing § 87(2)(b) but their faces are not visible. PO Mahuad continues pointing his Taser at her. At 31 second, an officer states, “Put your fucking hands behind you back,” while PO Mahuad’s camera is pointed to the wall to the right of § 87(2)(b) who is not visible.

In her verified testimony to the CCRB, § 87(2)(b) stated that she and § 87(2)(b) were involved in a confrontation during which § 87(2)(b) threw an object wrapped in a black plastic bag at her while she was inside her apartment [BR 02]. In response, § 87(2)(b) hit § 87(2)(b) back, possibly on her arm, with a six-inch wooden bat that she took from her bathroom. § 87(2)(b) picked an object that § 87(2)(b) threw at her and discovered it was an extension cord with electrical black tape wrapped around it. When the officers knocked on § 87(2)(b)’s door, she took the object that § 87(2)(b) threw at her knowing the reason why they were there. PO Gatling spoke to § 87(2)(b) explaining the reason why they were there. § 87(2)(b) explained her side of the story and showed the officers the object saying that § 87(2)(b) hit her with that. PO Mahuad took his Taser out and instructed § 87(2)(b) to drop it. § 87(2)(b) complied because she became scared. PO Gatling instructed § 87(2)(b) to come out, and she inquired what for. None of the officers responded, and she attempted to close her door. § 87(2)(b) was never informed she was under arrest at that point. Several officers, including PO Gatling, PO Hernandez, and an officer who she described as a white male, 5’8” tall, clean shaven with sleek black hair, in his 40s, reached § 87(2)(b) inside her apartment, grabbed her by her T-shirt and arms, and pulled her out to the floor landing. The same officers pushed her against the wall, and her stomach and chest made contact with it. § 87(2)(b) stated that PO Mahuad has been pointing his Taser at her until they were downstairs. § 87(2)(b) was consistent in her preceding statement to the CCRB regarding these allegations [BR 01].

When interviewed at the CCRB, PO Mahuad stated that after receiving the radio transmission about an assault in progress with a weapon, he assumed the weapon was a knife due to his instinct and “heat of the moment” [BR 04]. § 87(2)(b) related to him that § 87(2)(b) had a weapon without specifying what type. When § 87(2)(b) opened her door halfway, PO Mahuad observed § 87(2)(b) raise an unknown object in a shape of a highlighter wrapped in a plastic bag over her head while saying something he did not recall. Based on the nature of the call and the information provided by § 87(2)(b) PO Mahuad immediately assumed the object was a knife. Therefore, PO Mahuad feared for his and his partners’ safety and pointed his Taser at § 87(2)(b). § 87(2)(b) tossed the object on the floor and attempted to close her door. PO Smith and PO Cumberbatch pushed the door in, and PO Mahuad and PO Smith entered § 87(2)(b)’s apartment. Officers did not have any discussion among themselves prior going into the apartment. PO Mahuad explained that he did so also for fear of his safety. PO Mahuad cited the nature of the call and the fact that § 87(2)(b) opened the door with an object that he thought was a weapon and made “furtive movements.” PO Mahuad also believed that § 87(2)(b) was the alleged perpetrator of the crime. PO Mahuad was not certain if § 87(2)(b) had any other weapons inside the apartment and went inside to grab them, therefore he wanted to pull § 87(2)(b) out. PO Mahuad observed § 87(2)(b) in the bathroom located five feet away from the door and instructed her to come out several times. § 87(2)(b) did not comply and instead tensed up. PO

Mahuad put his Taser to the side, grabbed § 87(2)(b) by her shirt and pulled her out to the floor landing. PO Smith attempted to assist PO Mahuad but PO Mahuad was not certain if he did so. PO Mahuad pulled § 87(2)(b) in the direction where PO Gatling, PO Cumberbatch and PO Hernandez were standing and denied pushing her against the wall. He did not observe any other officers do so. Once PO Mahuad released § 87(2)(b) he pointed his Taser at her for approximately 30 more seconds while she was being handcuffed since he still feared for his and his partners' safety. However, he noted that § 87(2)(b) put her hands behind her back and he was unaware if she was holding any objects. In addition, he did not see if she had anything that looked like a weapon on her. PO Mahuad described § 87(2)(b) as compliant at that point but indicated he feared for his safety for the earlier mentioned reasons and because she has not been frisked yet. Upon reviewing the BWC recording, PO Mahuad admitted that he was the officer who told § 87(2)(b) "Put your fucking hands behind your back." He made that statement because of the adrenaline in his body and because he wanted to control the situation.

§ 87(2)(g)

PO Smith did not recall the details of the radio transmission but stated that § 87(2)(b) had informed the officers that § 87(2)(b) had hit her with a bat. PO Smith did not recall observing any injuries to § 87(2)(b) or if she complained of any pain or injury. When § 87(2)(b) opened the door, she was irate and screaming, but PO Smith did not recall any statements she made or whether she was making any movements. PO Smith confirmed that § 87(2)(b) was holding an unknown to him four-inch object, the shape of which he could not describe. § 87(2)(b) threw the object towards the officers on her volition and it landed on the floor. At some point after § 87(2)(b) opened the door, PO Smith observed that PO Mahuad had his Taser in his hand but he was not certain at which point PO Mahuad took it out of his holster. PO Smith also did not recall if the Taser was pointed at anyone in particular. PO Smith did not recall what conversation § 87(2)(b) and the officers had before she attempted to close the door or if she was given any instructions. PO Smith pushed the door in with his shoulders but he did not recall if he broke the plane of the apartment. PO Smith stated the only reason he pushed the door in was because § 87(2)(b) was suspected of an assault, however, he did not consider her under arrest yet. PO Smith noted that other officers might have considered § 87(2)(b) under arrest. When asked if he believed § 87(2)(b) could escape, PO Smith stated that anything was possible. However, he had no information if there was a fire escape in her apartment. After the door was pushed in, § 87(2)(b) was instructed to come out, and she complied. PO Smith did not recall any officers physically pull § 87(2)(b) out or push her against the wall. Upon reviewing the BWC recording, PO Smith stated it was possible he was the officer kicking the door in at 19 seconds adding he stepped over the threshold after pushing the door in.

PO Cumberbatch's CCRB statement was consistent with PO Smith's apart from the following details [BR 07]. When talking to § 87(2)(b) PO Cumberbatch did not observe any physical injuries to her but stated she complained of pain to her hand. When § 87(2)(b) opened the door, PO Cumberbatch was standing to the right of it and was unable to see inside the apartment. PO Cumberbatch did not recall the nature of § 87(2)(b)'s conversation with officers and noted that approximately a minute later, she threw a metal object wrapped in a plastic bag out onto the floor where the officers were standing. PO Cumberbatch did not believe § 87(2)(b) threw it to hit the officers but was trying to show them something. After § 87(2)(b) attempted to close the door, PO Cumberbatch placed his asp to prevent her from doing so and to ensure that no one else's fingers get caught. Other officers, including PO Smith who used his hands or feet,

also attempted to open the door with PO Cumberbatch. PO Cumberbatch did not recall if anything was said at that point and noted that eventually the officers were able to open the door. The first memory PO Cumberbatch had of PO Mahuad pointing his Taser at § 87(2)(b) was when the officers were able to open the door. Although PO Cumberbatch was unaware why PO Mahuad was doing so, he reiterated that earlier § 87(2)(b) had thrown an object onto the floor, attempted to close the door and the call involved an assault. For those reasons, as well as the fact that § 87(2)(b) was in the apartment and could have been in proximity to other weapons, PO Cumberbatch was in fear for his safety. Officers, who PO Cumberbatch did not recall, grabbed and pulled § 87(2)(b) from the apartment but PO Cumberbatch denied doing so himself. PO Cumberbatch denied going into the apartment at that point either. PO Cumberbatch did not observe any officers push § 87(2)(b) and denied doing so himself. Although PO Cumberbatch described § 87(2)(b) as combative, he stated she wasn't doing anything physically and was just saying she did not want to be arrested. Upon reviewing the BWC, PO Cumberbatch identified PO Smith as the officer kicking the door in at 17 seconds. He was not able to confirm whether his asp was in the door frame at that point.

In his CCRB testimony, PO Gatling stated that he responded to assist officers to the location and believed that the weapon involved was a cane based on the radio transmission [BR 05]. PO Gatling noted that when he got to the floor landing of § 87(2)(b)'s apartment, other officers were already talking to her but he did not recall the nature of their conversation. PO Gatling recalled observing an officer, possibly PO Mahuad, having his Taser out but he did not recall at which point the Taser was drawn. PO Gatling did not recall whether PO Mahuad was pointing his Taser at anyone or it was to his side. PO Gatling had no knowledge as to why PO Mahuad had the Taser out either. Although he recalled § 87(2)(b) attempting to close the door, PO Gatling was unaware if she was successful or if any officers opened it for her. Although PO Gatling noted that an officer pulled § 87(2)(b) out of the apartment, he did not recall if any officers entered § 87(2)(b)'s apartment to do so and denied doing so himself. PO Gatling just stood in the hallway and did not take any action. After § 87(2)(b) was pulled, she was handcuffed, but PO Gatling did not recall by whom. PO Gatling did not recall § 87(2)(b) physically resisting or displaying signs of physical aggression. PO Gatling noted several times that § 87(2)(b) was calm and "cool" with him. PO Gatling just recalled adjusting her handcuffs after escorting her out of the building.

§ 87(2)(g)

PO Hernandez confirmed that after opening the door, § 87(2)(b) tossed a three-inch long metal unknown to him object on the floor but he did not recall why. After § 87(2)(b) attempted to close the door, an officer – who PO Hernandez did not recall – opened the door with his hands breaking the plane of the apartment. At that time, PO Mahuad had his Taser pointed at § 87(2)(b). Later, after the incident, PO Mahuad informed PO Hernandez that he pointed his Taser because he feared for his safety, due to the nature of the call involving a deadly weapon, a bat, and because § 87(2)(b) attempted to close the door and he was unaware if she had access to any weapons inside the apartment. PO Hernandez denied entering § 87(2)(b)'s apartment at that point or pushing the door in. PO Hernandez was inconsistent in explaining whether § 87(2)(b) came out of the apartment on her own volition or was taken out by the officers. PO Hernandez handcuffed § 87(2)(b) with the assistance of PO Mahuad. Although PO Hernandez stated that § 87(2)(b) was moving around, she did not resist and it took him seconds to handcuff her. PO Hernandez stated the only physical contact § 87(2)(b) had with the officers

was when she was “guided out” of the apartment and when he touched her hands to handcuff her. PO Hernandez noted the only physical contact he had with § 87(2)(b) was when he handcuffed her and none of the officers used force against her. § 87(2)(b) never complained of any force used against her or of any pain or injury. PO Hernandez denied entering § 87(2)(b)’s apartment at any point and did not recall if other officers did. Upon reviewing the BWC, PO Hernandez stated that at one second, PO Mahuad was already pointing his Taser at § 87(2)(b) since he had his hand raised. PO Hernandez also further clarified that officers brought § 87(2)(b) out because they did not know what was inside the apartment at that time.

PO Rivera testified that after receiving a radio transmission about an assault in progress with a bat, he and PO Sifonte arrived at the location and decided to wait in the lobby of the building [BR 08]. After hearing noises and arguing upstairs, the officers went upstairs. On one of the landings, PO Sifonte observed § 87(2)(b) standing opposite an open apartment door facing away from it. PO Mahuad and PO Gatling were the ones standing next to § 87(2)(b) while she was yelling, moving her hands up and down in an expressive manner. The officers were telling her to calm down. PO Rivera did not observe any officers pull or push § 87(2)(b) and denied doing so either. PO Rivera denied making any physical contact with § 87(2)(b). PO Rivera did not recall if § 87(2)(b) was in handcuffs at that point nor did he observe any officers make physical contact with her. PO Mahuad’s Taser had already been drawn and PO Rivera did not observe when he first did so. PO Rivera was unaware when PO Mahuad holstered his Taser either.

§ 87(2)(g)
Upon getting to the floor landing, PO Sifonte observed § 87(2)(b) standing in the middle of the hallway in handcuffs. § 87(2)(b) was yelling and cursing at the time and PO Sifonte did not recall if she had any objects on her. PO Mahuad, PO Smith, PO Cumberbatch and PO Gatling were all in the hallway and surrounded § 87(2)(b) but none were in any physical contact with § 87(2)(b). PO Sifonte was unaware who handcuffed § 87(2)(b) and did not recall any officer pushing her or pointing their Taser at her. The door of § 87(2)(b)’s apartment was open but PO Sifonte had no knowledge as to how it was opened. Upon reviewing the BWC video, PO Sifonte believed that the object that landed on the floor at one second was in § 87(2)(b)’s possession. He also identified himself as the officer standing against the wall at the same time stamp. However, PO Sifonte testified he had no independent recollection of officers pushing the door in and could not tell if he was in the hallway by then. PO Sifonte did not recall observing officers enter § 87(2)(b)’s apartment at that time.

PO Torres testified that he had no recollection of the type of the weapon was mentioned in the radio transmission [BR 11]. Upon arriving at the location with PO Brito, he also observed other officers – whose identities he did not recall – talk to § 87(2)(b) who was standing in front of the apartment door. PO Torres did not recall if § 87(2)(b) was standing next to a wall or if the apartment door was open. PO Torres did not observe any officers push § 87(2)(b)’s apartment door and pull her out. PO Torres did not recall if § 87(2)(b) was in handcuffs and could not describe her demeanor citing the fact that he concentrated on § 87(2)(b) who by then was also in the hallway. PO Torres did not observe any objects on § 87(2)(b) and noted that his view of her was obstructed by other officers. PO Torres did not recall observing any officers pointing their Tasers at § 87(2)(b) nor did he observe any officers push her against the wall.

In his CCRB interview, PO Brito stated he recalled the call involved a bat and noted that upon getting to the floor landing, he observed PO Gatling, PO Mahuad, PO Hernandez and PO Smith. § 87(2)(b) was standing to left of the apartment door that was open. PO Brito did not

recall how officers were positioned in relation to § 87(2)(b) but noted that PO Gatling was the one talking to her at the time. PO Brito did not observe any officers push their way into the apartment and pull § 87(2)(b) out. PO Brito denied doing so himself or having any physical contact with § 87(2)(b). § 87(2)(b) was screaming but PO Brito did not recall any statements made by her. PO Brito did not recall if § 87(2)(b) was moving or walking around or whether she was in possession of any objects. However, he recalled there being an unidentified object on the floor but was unaware how it got there. PO Brito did not recall observing PO Mahuad point his Taser at § 87(2)(b) either. At some point, PO Gatling instructed § 87(2)(b) to put her hands behind her back but she did not comply and was explaining that she had not done anything. During that conversation, § 87(2)(b) was facing PO Gatling, and PO Brito did not observe if she was making any physical contact with the wall. PO Brito did not observe any officers push § 87(2)(b) against the wall and denied doing so himself. PO Gatling did not issue § 87(2)(b) any additional commands, and she eventually placed her hands behind her back.

During his testimony at the CCRB, PO Fraterrigo noted he did not recall the type of weapon involved in the assault [BR 13]. Upon arriving to the floor landing, PO Fraterrigo observed PO Cumberbatch, PO Smith and PO Mahuad being there. However, PO Fraterrigo did not recall the order in which officers arrived. Some officers knocked on the door, and § 87(2)(b) briefly opened it. PO Fraterrigo did not recall if anything other than “police” was told to her. PO Fraterrigo described § 87(2)(b) as agitated but did not recall if she made any statements or threw anything towards the officers. Based on PO Fraterrigo’s observation, § 87(2)(b) was not behaving in a dangerous towards the officers manner. PO Fraterrigo did not observe anything that could have looked like a weapon on § 87(2)(b) either. PO Mahuad had his Taser out but PO Fraterrigo could not describe in what position it was being held. PO Fraterrigo did not recall at which point PO Mahuad drew his Taser either. § 87(2)(b) attempted to close the door quickly, and PO Smith might have held it open with his hand. PO Farterrigo did not recall if any instructions were issued to § 87(2)(b) by then. PO Fraterrigo was not certain how, but § 87(2)(b)’s door was opened and she ended up in the hallway directly in front of her apartment. PO Fraterrigo did not recall there being any struggle between her and the officers and denied pulling her out of the apartment or using any force towards her. § 87(2)(b)’s demeanor remained the same, but PO Fraterrigo did not recall if she was making any movements while in the hallway. PO Fraterrigo did not recall if § 87(2)(b) stood next to a wall nor did he observe officers push her against one. PO Farterrigo believed that PO Mahuad put his Taser away at some point after § 87(2)(b) was in hallway but never observed him point the Taser at § 87(2)(b).

§ 87(2)(g)

According to NYPD records, PO Brito is a Hispanic male, 5’8” tall, 210 pounds with black hair balding on top, and was § 87(2)(b) old at the time of the incident; PO Fraterrigo is a white male, 5’10” tall, 210 pounds, with dark brown hair and was § 87(2)(b) old at the time of the incident [BR14]. § 87(2)(l)

§ 87(2)(g)

§ 87(2)(b)'s arrest report #§ 87(2)(b) does not note that force was used towards her and her physical condition in her arrest stamp in the 48th Precinct Command Log for October 11, 2017 lists her physical condition as apparently normal [NYPD 21 and 07]. There was no threat, resistance, and injury report prepared for § 87(2)(b) [NYPD 01].

According to NYPD Patrol Guide Procedure 221-01, the primary duty of all members of service is to protect and preserve life [BR 19]. However, necessary force may be used to ensure the safety of an officer and his partners or to gain compliance. In determining whether the use of force is reasonable, officers should take into account the following factors: the severity of the crime, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects compared to the officers, size, age, and condition of the subject, subject's violent history, presence of hostile crowd, and whether the subject is under the influence. According to NYPD Patrol Guide Procedure 221-08, a laser warning, pointing a Taser at a subject, may be used to gain voluntary compliance [BR 20].

§ 87(2)(g)

According to People v. McBride, 14 N.Y. 3d 440, officers may enter a private dwelling to effect an arrest without a warrant only when exigent circumstances exist [BR 21]. The following factors should be considered in order to determine whether exigent circumstances are present: the gravity of a crime the suspect is to be charged with, whether the subject is reasonably believed to be armed, the clear showing of probable cause for arrest, strong reason to believe that the perpetrator is in the premises, a likelihood of the subject's escape, and the peaceful circumstances of entry. In People v. Jimenez, 101 A.D. 3d, 569, officers went to a perpetrator's apartment after responding to a complaint that he threatened the victim with a knife [BR 22]. The subject opened the door holding the knife and then placed it on a stove. The officers were justified in taking a few steps into his apartment to arrest him and retrieve the knife to prevent him from being able to access it.

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

As for the second incident when PO Mahuad pointed his Taser at § 87(2)(b) he cited the same fear for his and his fellow officers' safety. However, § 87(2)(b) has already been taken out of the apartment, the unidentified object had been dropped, PO Mahuad did not observe any other objects on § 87(2)(b) and several officers, including PO Mahuad, described her as compliant during the handcuffing. § 87(2)(g) [REDACTED]

[REDACTED]

An officer is required to be courteous in his interactions with the public, NYPD Patrol Guide Procedure 203-09 [BR 23].

§ 87(2)(g)

[REDACTED]

Allegation (Q) Abuse of Authority: Police Officer Nicolas Mahuad questioned § 87(2)(b)

Allegation (R) Discourtesy: Police Officer Nicolas Mahuad spoke discourteously to § 87(2)(b)

Allegation (S) Abuse of Authority: Police Officer Nicolas Mahuad threatened § 87(2)(b) with the use of force.

Allegation (T) Abuse of Authority: Police Officer Nicolas Mahuad frisked § 87(2)(b)

Allegation (U) Abuse of Authority: Police Officer Heriberto Sifonte frisked § 87(2)(b)

§ 87(2)(b) did not make any of the abovementioned allegations and they were revealed by the BWC recording [BR 27].

According to the video evidence, at 42 seconds, PO Mahuad says, “You have a knife. Come out here right now [BR 27]. Come out of the fucking apartment right now. Come outside. Hands up.” His camera is facing the wall to the right of the apartment while he is standing opposite the open doorway. At 47 seconds, § 87(2)(b) s bare feet are in the camera view as he is walking towards the hallway. At 48 seconds, PO Mahuad says, “I don’t care what you did. Hands up.” PO Mahuad also instructs § 87(2)(b) to pull his pants up. At 58 seconds, § 87(2)(b) pulls his shorts up and at 59 seconds, an officer tells him, “Just turn around. Turn around and put your hands on the wall.” § 87(2)(b) turns towards the wall, and at 1:01 minute, a red light from the Taser is seen on his buttocks. § 87(2)(b) is in his underwear at this point and his shorts are hanging around his knees. At 1:02 minute, a white or Hispanic officer extends his hand towards § 87(2)(b) s upper body but his actions are not visible. The officer steps aside in one second, and at 1:03 minute, § 87(2)(b) states that his pants are coming off. The same officer tells him to keep them like that. At the same time, another officer touches § 87(2)(b) s pants in the left waistband area. PO Mahuad continues pointing his Taser at § 87(2)(b) s buttocks and legs telling him to keep his hands on the wall. PO Mahuad turns the Taser light off at 1:07 minute and takes into his left hand at 1:10 minutes. At 1:37 minutes, § 87(2)(b) asks if he can pull his pants up and PO Mahuad tells him to do so. § 87(2)(b) pulls his shorts up, and at 1:41 minute, PO Mahuad says, “You can’t button them?” § 87(2)(b) replies something while zipping the shorts up and places his hands on the wall. At 1:43 minutes, PO Mahuad says, “Zipping them up, but keep your hands up on the fucking wall.”

PO Mahuad’s CCRB testimony was consistent with the BWC recording [BR 04]. He explained that he instructed § 87(2)(b) to exit the apartment because he did not know if § 87(2)(b) had any weapons on him or if § 87(2)(b) had passed him any when she closed the door. The only reason PO Mahuad used profanity towards § 87(2)(b) was because of his adrenaline. PO Mahuad admitted he should not have used profanity but noted he was trying to control the situation. PO Mahuad patted down § 87(2)(b) s waistband and front and rear shorts pockets. PO Mahuad did not observe anything that looked like a weapon on § 87(2)(b) and reiterated he frisked § 87(2)(b) for the same reasons he instructed him to come out. PO Mahuad also asked § 87(2)(b) if he had any weapons, to which § 87(2)(b) replied he had not. After watching the BWC recording, PO Mahuad explained he pointed his Taser at § 87(2)(b) for safety reasons, citing the same factors as above, and to ensure § 87(2)(b) did not have any weapons on him. PO Mahuad also added that § 87(2)(b) was not resisting and was compliant.

§ 87(2)(g)

PO Sifonte stated that when he first observed § 87(2)(b) he was coming out of the apartment with his pants down exposing his penis. § 87(2)(b) was also holding a four to five inches long cylindrical black object in his fist. PO Sifonte confirmed that PO Mahuad was pointing his Taser at § 87(2)(b) and assumed it was because he was holding an unknown object and was exposing his penis. In addition, it took § 87(2)(b) a while to comply with PO Mahuad's commands to show his hands and place them on the wall. However, § 87(2)(b) was not behaving in aggressive manner, was not saying anything and there was no indication on his clothing that he had a weapon. When § 87(2)(b) complied with PO Mahuad's commands, the officer put his Taser away. PO Sifonte then patted § 87(2)(b)'s shorts pockets for weapons. PO Sifonte explained that § 87(2)(b) was wearing baggy pants that were hanging below the waistline. After that, PO Sifonte asked § 87(2)(b) to give him the object which he determined to be a roll of quarters in a black plastic bag. Upon reviewing the BWC video, PO Sifonte stated that he believed the object that landed on the floor at one second was actually recovered from § 87(2)(b). PO Sifonte stated he was the officer who instructed § 87(2)(b) to turn around at 1:01 minute but noted he did not observe the frisk on the video. However, based on his recollection he observed the object in § 87(2)(b)'s hand and frisked him. PO Sifonte then stated that either the video did not capture him frisking § 87(2)(b) or that did not occur.

PO Gatling, PO Hernandez, PO Cumberbatch, PO Rivera, and PO Smith had no recollection of the alleged misconduct and did not describe § 87(2)(b)'s demeanor [BR 05, 06, 07, 08, 10]. PO Torres had no recollection of allegations or § 87(2)(b)'s behavior and just noted that PO Mahuad pulled out an unknown object from him [BR 11]. PO Fraterrigo described § 87(2)(b) as curious and did not recall him behaving in a dangerous manner [BR 12]. However, PO Fraterrigo had no recollection of what § 87(2)(b) was wearing, if he had any objects and of the allegations. PO Brito confirmed that PO Mahuad instructed § 87(2)(b) to come out of the apartment and pointed his Taser at § 87(2)(b)'s upper body, which he put away after § 87(2)(b) turned around. PO Brito described § 87(2)(b) as inattentive since he informed the officers he had just woken up. PO Brito did not recall what § 87(2)(b) was doing with his hands, whether he had any objects on him or how he was dressed. PO Brito did not recall observing any objects that looked like a weapon on § 87(2)(b). PO Brito had no recollection of other allegations.

§ 87(2)(g)

§ 87(2)(g)

An officer is required to be courteous in his interactions with the public, NYPD Patrol Guide Procedure 203-09 [BR].

§ 87(2)(g)

§ 87(2)(g)

According to NYPD Patrol Guide Procedure 221-01, the primary duty of all members of service is to protect and preserve life [BR 19]. However, necessary force may be used to ensure the safety of an officer and his partners or to gain compliance. In determining whether the use of force is reasonable, officers should take into account the following factors: the severity of the crime, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects compared to the officers, size, age, and condition of the subject, subject's violent history, presence of hostile crowd, and whether the subject is under the influence. According to NYPD Patrol Guide Procedure 221-08, a laser warning, pointing a Taser at a subject, may be used to gain voluntary compliance [BR 20]. Based on Patrol Guide Procedure 212-11, an officer may frisk an individual if he/she reasonably believes that the person is armed and dangerous [BR 24].

§ 87(2)(g)

§ 87(2)(g)

Allegation (V) Abuse of Authority: Police Officer Brian Hernandez entered § 87(2)(b)
§ 87(2)(b) in the Bronx.

Allegation (W) Abuse of Authority: Police Officer Brian Hernandez searched § 87(2)(b)
§ 87(2)(b) in the Bronx.

Allegation (X) Abuse of Authority: Police Officer Christopher Gatling entered § 87(2)(b)
§ 87(2)(b) in the Bronx.

Allegation (Y) Abuse of Authority: Police Officer Christopher Gatling searched § 87(2)(b)
§ 87(2)(b) in the Bronx.

§ 87(2)(b) alleged that after she was pulled into the hallway, she observed PO Gatling and PO Hernandez inside her apartment searching rooms and opening drawers [BR 02]. § 87(2)(b) never gave them permission to enter nor did they ask for it or informed her they were entering the apartment. The officers spent there approximately 15 minutes and came out with a

bat § 87(2)(b) used to hit § 87(2)(b) § 87(2)(b) was consistent in her CCRB statements in regards to this part of the incident [BR 01].

Both PO Hernandez and PO Gatling denied entering and searching § 87(2)(b)'s apartment and did not recall if any other officers did [BR 05, 06]. Neither could identify any additional officers who entered § 87(2)(b)'s apartment based on the video.

None of the other officers who were interviewed indicated that PO Hernandez and PO Gatling entered or searched the apartment [BR 04, 07, 08, 09, 10, 11, 12, 13]. PO Mahuad and PO Sifonte could not identify any additional officers entering the apartment in the BWC recording [BR 04, 09].

Video evidence shows several unidentified officers enter § 87(2)(b)'s apartment after she was taken out at 35 seconds, 1:06 minute, and 1:33 minute [NYPD 03].

§ 87(2)(g)

Allegation (Z) Abuse of Authority: Police Officer Jamal Cumberbatch entered § 87(2)(b) in the Bronx.

Allegation (2A) Abuse of Authority: Police Officer Gregory Smith entered § 87(2)(b) in the Bronx.

Allegation (2B) Abuse of Authority: Officers entered § 87(2)(b) in the Bronx.

Allegation (2C) Abuse of Authority: Police Officer Jamal Cumberbatch entered § 87(2)(b) in the Bronx.

§ 87(2)(g)

Video evidence shows several unidentified officers enter § 87(2)(b)'s apartment after she was taken out at 35 seconds, 1:06 minute, and 1:33 minute [BR 27]. At 2:59 minutes, PO Rivera is also seen standing on the threshold of the apartment.

In his CCRB interview, PO Cumberbatch admitted to entering § 87(2)(b)'s apartment together with PO Smith after § 87(2)(b) and § 87(2)(b) stepped outside to get the bat [BR 07]. Since § 87(2)(b) stated she was hit with a bat, PO Cumberbatch believed the it could only be inside at that point. PO Cumberbatch did not believe that any officers asked § 87(2)(b) where the bat was at the time. PO Cumberbatch recovered the bat from the bathroom, which is the first door to the right from the entrance. However, PO Cumberbatch did not recall the exact location of the bat in the bathroom. Once he recovered the bat, PO Cumberbatch left the apartment. He denied entering any other rooms or opening any drawers inside the apartment. PO Cumberbatch observed PO Smith in an open area of the apartment not far from the door and did not recall if PO Smith went to other locations. PO Cumberbatch did not recall if any other officers entered the apartment. After leaving the apartment, PO Cumberbatch gave the bat to an officer, who he did not recall, and believed that it was later vouchered as evidence. In the BWC recording, he identified himself as the officer entering the apartment at 1:33 minute.

PO Smith denied entering § 87(2)(b)'s apartment at that point to recover the bat [BR 10]. He admitted to entering § 87(2)(b)'s apartment to obtain her identification but at a later time. After exiting the apartment, he observed an officer, who he did not recall, holding the bat in

the hallway. Upon reviewing the BWC recording, PO Smith stated that he did not recall which officers entered the apartment at 1:06 minute and believed he was not among them. Based on his professional opinion, PO Smith believed that officers were in there to ensure that no one ran out with gun. However, there was no discussion among the officers about their decision to enter the apartment. PO Smith identified himself as the officer exiting the apartment at 3:19 minutes holding his Taser. PO Smith did not recall if any officers went inside with him. PO Smith explained he entered the apartment to ensure that no one ran out there and “killed” the officers. PO Smith noted that everything was unpredictable and the circumstances were “extenuating.” PO Smith did not hear any commotion inside nor did he ask the civilians if anyone else was there. PO Smith did not ask for permission prior to entering and did not believe that anyone objected to him being there. PO Smith believed that he just went to the back of the apartment and came out and denied searching it.

PO Rivera denied entering the apartment at this point [BR 08]. He denied looking for weapon inside and did not observe any officers do so. When watching the BWC recording, PO Rivera identified himself as the officer standing in the door way at 2:59 minutes. However, he did not recall if he had already gone inside the apartment at that point.

PO Fraterrigo testified that at some point after § 87(2)(b) was in the hallway, an officer, whose identity he did not recall, entered § 87(2)(b)'s apartment [BR 12]. PO Fraterrigo might have looked inside and stepped over the threshold for that officer's safety. PO Fraterrigo was not certain if that officer went into any rooms and noted he was there only for a brief moment. PO Fraterrigo did not observe any officers search the apartment. PO Fraterrigo could not identify the moment he was inside the apartment in the video or any additional officers who went there.

PO Mahuad testified that although the bat was recovered, he did not recall who recovered it [BR 04]. PO Mahuad did not indicate that he entered the apartment at that point. Upon reviewing the BWC video, PO Mahuad added that PO Smith was the officer who asked, “Where's the bat at?” at 1:05 minute.

PO Gatling stated that the bat was given to him by PO Cumberbatch but he did not know if PO Cumberbatch recovered it or where and when it was recovered [BR 05]. As noted in the previous section, he denied observing any officers entering § 87(2)(b)'s apartment.

PO Hernandez noted he was aware that the bat was recovered but was not certain when and by whom [BR 06]. He observed PO Gatling come out of the building with the bat. Upon reviewing the BWC footage, PO Hernandez indicated that at 1:09 minute, the officers were entering § 87(2)(b)'s apartment to look for the bat. He denied entering the apartment himself.

PO Sifonte's had no recollection of any officers entering the apartment and denied doing so [BR 09]. He was unaware if the weapon was recovered. PO Torres's and PO Brito's testimony were consistent with that of PO Sifonte [BR 11, 13].

A wooden bat was vouchered by PO Gatling as arrest evidence under the voucher number #§ 87(2)(b) [NYPD 14]. The finder is listed as unknown.

§ 87(2)(g)

_____.

According to People v. Knapp, 52 N.Y.2d 689, a warrantless search of an individual's home is unconstitutional [BR 25]. Although officers were justified in entering the apartment

under exigent circumstances, they were not justified in entering a bedroom and a bathroom while they had control of all four individuals discovered inside.

§ 87(2)(g)

PO Smith explained that the reason for his entry at that point in time was to ensure that no one ran out of the apartment and harmed the officers. § 87(2)(g)

In addition, PO Mahuad indicated that PO Smith was the officer who asked about the bat at 1:05 minutes, near the time when PO Cumberbatch entered the apartment, and PO Hernandez confirmed that the officers who entered the apartment at 1:06 minute went there to look for the bat. § 87(2)(g)

§ 87(2)(g)

Allegation (2D) Abuse of Authority: Police Officer Nicolas Mahuad entered § 87(2)(b) in the Bronx.

Allegation (2E) Abuse of Authority: Police Officer Gregory Smith entered § 87(2)(b) in the Bronx.

Allegation (2F) Abuse of Authority: Police Officer Jose Rivera entered § 87(2)(b) in the Bronx.

Allegation (2G) Discourtesy: Police Officer Gregory Smith spoke discourteously to § 87(2)(b)

§ 87(2)(g)

According to the BWC recording, at 3:37 minutes, § 87(2)(b) asks if she can get her keys and identification [BR 27]. She asks for it again at 3:40 minutes. At 3:47 minutes, PO Mahuad says, “Give me that... Give me,” motioning towards himself with his right hand. He is facing § 87(2)(b) who is standing in the doorway of the apartment. At 3:49 minutes, § 87(2)(b) enters the apartment looking back and calling his sister; PO Mahuad follows him. At 3:50 minutes, § 87(2)(b) is yelling towards § 87(2)(b) asking her where the keys are, and PO Mahuad tells him to go and get the identification. At 3:55 minutes, § 87(2)(b) walks past a room and asks § 87(2)(b) where the identification is again. PO Mahuad follows § 87(2)(b) further into the apartment. At 4:02 minutes, § 87(2)(b) enters a bedroom and asks § 87(2)(b) where the identification is. At 4:08 minutes, an officer says, “All we need is her ID, no keys.” At

4:13 minutes, an officer says, “You ain’t getting no phone call. Take her ass downstairs.” At 4:25 minutes, an unidentified individual says, “Give her five dollars just in case she needs some shit.” At the same time, § 87(2)(b) hands PO Mahuad § 87(2)(b)’s identification and five dollars. At 4:32 minutes, officers start walking out of the apartment.

PO Mahuad testified that after § 87(2)(b) was handcuffed, he asked § 87(2)(b) to get § 87(2)(b)’s identification and followed him into the apartment together with PO Smith [BR 04]. PO Mahuad did not recall if § 87(2)(b) requested her identification. PO Mahuad explained he needed § 87(2)(b)’s documentation for identification purposes and entered the apartment for his safety. PO Mahuad did not know if § 87(2)(b) would go inside and grab a weapon but could not articulate why he thought so. PO Mahuad stated he did not know the relationship between the two civilians and feared § 87(2)(b) could grab a weapon in retaliation. PO Mahuad did not ask if he could enter the apartment nor did § 87(2)(b) object to him being there. PO Mahuad and PO Smith followed § 87(2)(b) to the back room, where he gave the officers § 87(2)(b)’s identification and five dollars. While PO Mahuad acknowledged that officers could identify a person without identification on them but that would take longer. PO Mahuad indicated that PO Smith was the officer who made the discourteous statement referring to § 87(2)(b).

PO Smith confirmed that at some point, he and PO Mahuad entered § 87(2)(b)’s apartment to obtain her identification, however, he did not recall if any other officers went with them [BR 10]. PO Smith’s testimony was largely consistent with that of PO Mahuad with an exception of the fact that he denied making the alleged statement.

PO Rivera § 87(2)(g) did not recall which officers entered the apartment with him [BR 08].

PO Gatling stated that based on the video, he believed either PO Smith or PO Cumberbatch made the alleged statement [BR 05].

PO Hernandez testified that PO Mahuad entered § 87(2)(b)’s apartment to retrieve her identification but did not recall if any other officers did [BR 06]. PO Hernandez was unable to identify the officer who made the alleged statement.

PO Cumberbatch did not believe he was inside the apartment when the alleged statement was made and could not identify the subject officer [BR 07].

PO Sifonte’s, PO Torres’, PO Fraterrigo’s, testimonies were consistent with those if PO Hernandez and PO Cumberbatch [BR 09, 11, 12]. PO Brito had no recollection of any officers entering § 87(2)(b)’s apartment [BR 13].

§ 87(2)(g)

According to People v. Green, 103 A.D. 2d 362, once a security check of the premises has been completed, no further intrusion is permitted until a warrant is obtained [BR 26].

An officer is required to be courteous in his interactions with the public, NYPD Patrol Guide Procedure 203-09 [BR 23].

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three CCRB complaints and has been named as a victim in three other allegations [BR 16]:
 - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party [BR 16].
- PO Mahuad has been a member of service for two years and has been a subject in three other CCRB complaints and five allegations, none of which were substantiated:
 - Case #201800757 involves a physical force allegation that is currently pending investigation.
 - Case #201801421 involves gun fired § 87(2)(g) allegations that are currently pending investigation.
- PO Smith has been a member of service for six years and has been a subject in one additional CCRB complaint and one allegation that was not substantiated. § 87(2)(g)
- PO Cumberbatch has been a member of service for six years and has been a subject in two additional CCRB complaints and two allegations, none of which were substantiated. § 87(2)(g)
- PO Gatling has been a member of service for 22 years and has been a subject in three additional CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- PO Hernandez has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.
- PO Sifonte has been a member of service for 11 years and has been a subject in five other CCRB complaints and nine allegations, of which three were substantiated:
 - Case 200814945 involved substantiated allegations of retaliatory summons, frisk and question listed against PO Sifonte. The Board recommended charges for all three allegations. NYPD imposed instructions for the retaliatory summons and question allegation and no disciplinary action was taken by NYPD in regards to the frisk allegation. § 87(4-b) § 87(2)(g)
- PO Rivera has been a member of service for 11 years and has been subject in six other CCRB complaints and six allegations, none of which were substantiated:
 - Case 201800099 involved a premises entered and/or searched allegation against PO Rivera that was withdrawn.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation due to the criminal case that stemmed from the incident.
- As of May 21, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim having been filed in regards to this complaint [BR 18].

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 15

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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